

Ashwani Kumar v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 August 2025 · 2025:AHC:128949-DB · WRIT - C No. - 20304 of 2025 · **Writ petition dismissed; no cause of action disclosed.**

HEADNOTE

Writ against an alleged incorrect electricity bill dismissed. Petitioner had earlier been redirected to complain under the U.P. Electricity Supply Code, 2005; the resulting 24 April 2025 letter confirmed no dues only for November 2023–January 2024 cycles, and the 10 April 2025 bill had already been paid. No cause of action disclosed.

FACTUAL SUMMARY

Ashwani Kumar petitioned the Allahabad High Court alleging that despite a letter dated 24 April 2025 stating there were no dues, the supply company raised a bill dated 10 April 2025 due on 24 April 2025. He had earlier been redirected to complain under the U.P. Electricity Supply Code, 2005, producing that letter. The licensee submitted that the April 2025 bill was paid on 11 April 2025. The no-dues letter related to billing cycles of November 2023, December 2023 and January 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

billing; cause of action

HOLDING

A writ does not lie where no cause of action is disclosed. The licensee's 24 April 2025 no-dues letter spoke only to billing cycles of November 2023, December 2023 and January 2024, and the bill dated 10 April 2025 had already been paid on 11 April 2025. Petition dismissed. ¶ 3-4

PRINCIPLE TAGS

billing-cause-of-action Writ against an alleged incorrect electricity bill dismissed. Petitioner had earlier been redirected to complain under the U.P. Electricity Supply Code, 2005; the resulting 24 April 2025 letter confirmed no dues only for November 2023–January 2024 cycles, and the 10 April 2025 bill had already been paid.. ¶ 3-4